

Raman & Cole Family Lawyers

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Our ref: PR/2026/0447 | Principal: Priya Raman (Lawyer's Code VIC0947)

The orders we will ask the Court to make

Date 13 August 2026

Dear Amara, these are the final orders we will seek in the Initiating Application. Please confirm they are correct.

Final orders sought

1. That the children Harper Mai Nguyen born 8 June 2014, Elliot Van Nguyen born 21 February 2017 and Thea Grace Nguyen born 30 September 2021 live with the applicant.
2. That the children spend time with the respondent each alternate weekend from after school Friday until before school Monday, each Wednesday from after school until 7.30pm, half of all school holidays, and on special occasions as agreed.
3. That the applicant and the respondent have joint decision-making responsibility for major long-term issues concerning the children.
4. That the respondent's interest in the property at 18 Kelburn Street, Coburg VIC 3058 be transferred to the applicant, the applicant to refinance the Bendigo Bank loan within 120 days and indemnify the respondent.
5. That the applicant's interest in the property at 12/6 Nicholson Street, Coburg VIC 3058 be transferred to the respondent, the respondent to refinance the ANZ loan within 120 days and indemnify the applicant.
6. That the respondent retain the shares in and assets of Hai Au Kitchen Pty Ltd (ACN 617 442 908) and be solely liable for its debts.
7. That there be a superannuation splitting order under Part VIIIB of the Family Law Act 1975 whereby a base amount of \$57,840 is paid from the respondent's interest in the Australian Retirement Trust to the applicant's interest in HESTA.
8. That the applicant retain the 2019 Mazda CX-5 and the respondent retain the 2021 Toyota HiLux SR5.
9. That the parties otherwise retain the assets, liabilities and financial resources in their respective possession or control.
10. That the net non-superannuation property of the parties be divided as to 58 per cent to the applicant and 42 per cent to the respondent.

Interlocutory orders sought

1. That pending final orders the children live with the applicant and spend time with the respondent each alternate weekend from after school Friday until before school Monday.
2. That pending final orders each party be restrained from selling, encumbering or otherwise dealing with the property at 12/6 Nicholson Street, Coburg VIC 3058 other than by consent in writing or by order of the Court.
3. That the parties jointly appoint a single expert valuer to value Hai Au Kitchen Pty Ltd, the costs of the valuation to be borne equally in the first instance.

Because we seek interlocutory orders you must also swear an affidavit setting out the facts relied on. We are not seeking urgent or ex parte consideration, and we are not seeking an Airport Watch List order or any order restraining the children's overseas travel.